



JAMAICA CONSTABULARY FORCE

Firearms taken into Police Custody Standard Operating Procedures

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1.0 PURPOSE

The purpose of this Order is to set out procedures to be followed whenever a firearm comes into Police custody and also to set out administrative matters pertaining to firearms.

2.0 STANDARD OPERATING PROCEDURES

2.1 The procedures are to be followed with respect to all firearms which come into police custody regardless of the nature of the incident:

1. Once taken into custody, all firearms shall be unloaded and rendered safe;
2. The appropriate report (crime, incident, etc.) detailing all circumstances leading to the custody of the firearm, shall be completed;
3. The member who takes custody of the firearm shall cause a police records check to be conducted to determine if the weapon is stolen and who the owner may be;
4. A Jamaica Constabulary Force property card shall be filled out and attached to the weapon. The firearm shall be fully described, including make, model, serial number, calibre/gauge, barrel length and type;
5. In the event that the firearm is in police custody as a result of its use in a crime and is to be held as an exhibit and must be submitted for examination by the ballistics unit of the Police Forensic Laboratory, the following procedures shall be followed:
 - a. the weapon shall be placed in a clean, sanitary plastic bag. This shall be done with care not to contaminate its evidentiary value;
 - b. a Jamaica Constabulary Force "Exhibits for Police Forensic Laboratory" form shall be attached to the evidence bag;
 - c. any and all bullets shall be placed in a separate plastic bag;
 - d. in order to maintain a clear chain of custody, the member who is assigned investigation of the case shall transport the exhibit(s) to the Police Forensic Laboratory. This shall be done in all cases with the exception of those instances when Forensic Laboratory Personnel collected the evidence themselves;
 - e. once the exhibit(s) have been examined and ballistics response have been determined, the member assigned to the case shall then retrieve the exhibit(s) and deliver same to the station exhibit store for safekeeping pending a court trial. He shall also ensure that all information regarding the exhibit is registered in the exhibit register;

- f. the firearm exhibit shall remain in the secure exhibit store until such time as the case is scheduled for trial. The member assigned to the case shall, in order to maintain a continuous chain of custody, retrieve the exhibit from the store, sign the exhibit book and personally transport the firearm exhibit to court for presentation at trial;
 - g. it shall be the responsibility of that member to notify the ballistic examiner of the trial date once it is known.
- 6. Police Forensic Laboratory ballistics section shall:
 - a. be responsible for test firing firearms;
 - b. make ballistics comparisons when required;
 - c. advise the investigator when any examination is concluded;
 - d. provide the investigator with one copy of laboratory report for the Director of Public Prosecutions and one copy for the investigator;
 - e. maintain a current list of outstanding homicide data as it relates to the make and type of weapons being sought. Monthly, the Assistant Commissioner, Criminal Investigation Branch shall be provided a copy of this data.
- 7. The exhibits store keeper shall:
 - a. not accept any firearm without all required forms and/or incident reports;
 - b. secure all firearms in the exhibit store;
 - c. ensure that he has logged the firearm in the exhibit store register or the firearm register.

2.2 Firearm Registers

The following are the official Firearm Registers to be maintained in the Force:

- a. Divisional Civilian Firearms Registers;
- b. Central Firearm Register (C.I.B. Hq.);
- c. Firearm License Register (Divisions);
- d. Firearm Users' Employee's Certificate Register;
- e. Firearm Stock Book;
- f. Ammunition Stock Book;

- g. Police Personnel Firearms Register;
- h. Lost or Stolen Firearm Register.

2.3 Divisional Civilian Firearms Register

1. A firearms register will be maintained in each Divisional Headquarters for the purpose of recording firearms and ammunition that come into police possession. It shall be under the direct control of the Divisional Officer who:
 - a. personally oversees all entries and initial same or direct his deputy to do so;
 - b. personally oversees and authorizes all transfers or deliveries;
 - c. once each quarter, checks firearms in custody against the record and certifies the register accordingly;
 - d. ensures that the Assistant Commissioner, Criminal Investigation Branch is notified of all weapons taken into custody;
 - e. ensures that the necessary entries are made in Station Diary and General Property Register.
2. The register shall be prepared with the following headings:
 - a. consecutive register number;
 - b. date of entry;
 - c. make, model, serial number, calibre/gauge, barrel length and type;
 - d. owner's name and address;
 - e. comment on how weapon came into police custody;
 - f. signature of person turning in firearm;
 - g. signature of store clerk;
 - h. authority for transfer or disposal;
 - i. signature of person receiving weapon and date.
3. Firearms seized or surrendered by the Court and/or forfeited to the Government of Jamaica or authorized by the owner to be destroyed, shall be forwarded to the Police Armoury at Elletson Road, Kingston. A transfer of property receipt form shall be filled out in each of these cases.

2.4 Central Firearms Register - Criminal Investigation Branch

1. A central firearms register shall be maintained at Criminal Investigation Branch Headquarters. It shall be under the direct control of the Officer in charge Criminal Investigation Branch. This register shall contain:
 - a. all information on all firearms that have come into police custody at any Division of the Jamaica Constabulary Force. The Divisional Officer in each Division shall provide this information and an update on the weapon's status.

- b. all information on the granting of new firearm licenses as outlined in Force Orders
- 2. The register shall be prepared with the following headings:
 - a. Consecutive register number;
 - b. Name of owner/licensee;
 - c. Address of licensee;
 - d. Calibre/make/model;
 - e. Type of weapon;
 - f. Serial number;
 - g. Type of license;
 - h. Date of entry.

2.5 Firearm License Register

This register shall be kept at all Divisional Headquarters and be in accordance with the Firearms Act. It shall be maintained for the purpose of recording all information regarding people who own and are licensed to have firearms in that Division. The register shall be prepared with the following headings:

- a. Consecutive register number
- b. Name of owner;
- c. Address of owner;
- d. Make, model, calibre, serial number;
- e. Date license was issued and number;
- f. date tax was paid.

2.6 Firearms Users Employer's Certificate Register

This register shall be maintained at all Divisional Headquarters and be in accordance with the Firearms Act. Any individual, company or organization, such as a security company which has employees to be licensed to use its firearms must be recorded in this register. The register shall be prepared with the following headings:

- a. Consecutive register number
- b. Name of person to carry firearm
- c. Address
- d. Make, model and serial number
- e. Owner's name
- f. Address
- g. Type of license and number
- h. Date certificate is issued
- i. Date tax was paid.

2.7 Ammunition Stock Book

This stock book shall be maintained by the Police Headquarters Armourer at Elletson Road, Kingston. It shall be maintained for the purpose of having an inventory of and accountability for all ammunition assigned to the Jamaica Constabulary Force and any of its stations. This book shall specify the amount, by caliber, which is assigned to all Branches, Divisions and Stations.

2.8 Firearm Stock Book

This stock book shall be maintained by the police Armourer at Elletson Road, Kingston. It shall be maintained for the purpose of having an inventory of and accountability for all firearms assigned to the Jamaica Constabulary Force and any of its stations. This book shall specify the number of firearms by brand name, calibre, model and serial number, which are assigned to all Branches, Divisions and Stations.

2.9 Police Personnel Firearms Register

This register shall be maintained at all police Stations, Branches and Divisions. It shall be maintained for the purpose of recording all pertinent information pertaining to the issue of a weapon to a member of the Jamaica Constabulary Force. It shall also carry the station's inventory of firearms.

2.10 Lost or Stolen Firearms Register

This register shall be maintained at all Jamaica Constabulary Force Divisional Headquarters. It shall be maintained for the purpose of recording information on firearms that are reported lost or stolen. The register shall be prepared with the following headings:

- a. Consecutive register number
- b. Date entry
- c. Name of citizen
- d. Address of citizen
- e. Make, model, serial number
- f. Date lost or stolen
- g. Investigator assigned to case
- h. Date recovered.

2.11 Firearms Handed Over By Customs

The Minister of Finance may direct that firearms and/or ammunition seized by Customs be turned over to the Police if they have not been disposed of. These firearms shall be stored at the Armoury, Elletson Road, Kingston, pending any court trial or disposal order.

2.12 Jamaica Constabulary Force Armoury

The following shall be the responsibilities of Headquarters Armoury with regard to firearms:

1. General Responsibilities - to order, receive, maintain, repair and keep an inventory of all weapons and ammunition assigned to the Jamaica Constabulary Force;
2. Court ordered Destruction - when a court orders destruction of a weapon, said weapon shall be delivered to the Armoury, Elletson Road, Kingston. The Armourer shall:
 - a. render the weapon immobilized;
 - b. file a certificate of destruction;
 - c. oversee its dumping at sea;
 - d. file a certificate that the weapon was in fact dumped at sea returning a copy to the authority ordering the destruction.
3. Board of Survey - when the suitability of a service firearm for retention in service is in question, the Armourer shall request in writing through the Deputy Commissioner of Police for Services, that a Board of Survey be convened. The Board shall consist of representatives determined by the Ministry of Finance. The findings and recommendations of the Board shall be strictly implemented;
4. Safe-keeping at the direction of the Government, the Commissioner of Police, or the courts, weapons from time to time are ordered to be held at the Armoury, Elletson Road, Kingston, for safe-keeping. A separate record shall be kept of all weapons held for safe-keeping. In January of each year, the officer in charge of the Armoury shall provide the Commissioner of Police with a report of all weapons being held for safe-keeping, the date each weapon was received, by whose authority and if the weapon is serviceable or not. Nothing in this Order supersedes the provisions of the Firearms Act, but rather complements the Act which also shall be followed.